

new 2020 Hyundai vehicle pursuant to the limited warranties described in this Owner's Handbook.” (Id. at pg. 16.) Given plaintiff has leased the vehicle in California, is bringing this action pursuant to this warranty, and has alleged that repairs have been performed under the warranty, the arbitration provision applies. Therefore, defendant may compel arbitration under the warranty.

Based on the foregoing, the court grants defendant’s motion to compel arbitration. This action shall be stayed in its entirety pending conclusion of the arbitration. **The case management conference set June 22, 2026, is vacated. An order to show cause re: arbitration is set February 19, 2027, at 9:00 a.m. in Department 1.**

14. S-CV-0056703 Casebolt Flynt, Elizabeth v. Whitely, Jesse

The demurrer to the second amended complaint and motion to strike portions of plaintiff’s first amended complaint for damages are continued to June 23, 2026, at 8:30 a.m. in Department 42.

15. S-CV-0056851 Kevie, Richard v. Tiernan, William

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Possession and Preliminary Injunction

Plaintiff moves for a preliminary injunction enjoining the sale of real property known as 205 Summit Street, Auburn, California 95603.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, “the court must consider whether the party seeking the injunction is likely to prevail on the merits” and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

A preliminary consideration for the court is proper notice to the party to be enjoined. “No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527, subd. (a).) Here, a careful review of the court file reveals no evidence this motion has been served on either defendant. The motion for preliminary injunction is therefore denied.